

Court No. - 29

Case :- WRIT - C No. - 25750 of 2019

Petitioner :- Vishnu Swaroop Gaud

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gopal Krishna

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the respondents No. 3 and 4.

The petitioner has preferred this writ petition so as to challenge the recovery citation dated 29.06.2019 whereby a sum of Rs.70,190/- is sought to be recovered from him as arrears of electricity dues.

The aforesaid electricity dues have been demanded from the petitioner on the basis of the electricity bill raised against him.

Learned counsel for the petitioner submits that the aforesaid electricity bill is incorrect and is excessive.

If that was the case, the petitioner could have got the bill correct by approaching the Executive Engineer in accordance with the Clause 6.5 of the U.P. Electricity Supply Code, 2005 but the petitioner so far has not approached the Executive Engineer for the purpose.

Sri Mahboob Ahmad, informs that the petitioner has not even come forward in response to the notice whereby he was called upon on 18.08.2019 to submit his grievance if any.

In view of the aforesaid facts and circumstances, as the Executive Engineer is open to consider the grievance of the petitioner, we dispose of the writ petition with the direction to the petitioner to appear before the Executive Engineer concerned by 27.08.2019. In case the petitioner so approaches, the Executive Engineer will consider the matter regarding correction of the electricity bill.

Accordingly, the Writ Petition is **disposed off**.

Order Date :- 20.8.2019/piyush